

24SMCV00651 24SMCV00651

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Case Number: 24SMCV00651 Hearing Date: July 10, 2026 Dept: M

CASE NAME: Shen, et al.,

v. Li, et al.

CASE NO.: 24SMCV00651

MOTION: Motion

for Preliminary Injunction

HEARING DATE: 7/10/2026

Legal

Standard

Under Code of Civil Procedure ("CCP")

section 526(a), a preliminary injunction may be issued in the following cases:

1)

When it appears by the complaint that the plaintiff is entitled to the relief demanded, and the relief, or any part thereof, consists in restraining the commission or continuance of the act complained of, either for a limited period or perpetually.

2)

When it appears by the complaint or affidavits that the commission or continuance of some act during the litigation would produce waste, or great or irreparable injury, to a party to the action.

3)

When it appears, during the litigation, that a party to the action is doing, or threatens, or is about to do, or is procuring or suffering to be done, some act in violation of the rights of another party to the action respecting the subject of the action, and tending to render the judgment ineffectual.

4) When pecuniary compensation would not afford adequate relief.

5)

Where it would be extremely difficult to ascertain the amount of compensation which would afford adequate relief.

6)

Where the restraint is necessary to prevent a multiplicity of judicial proceedings.

7) Where the obligation arises from a trust.

In determining whether to issue a preliminary injunction, the trial court considers two factors: 1) the reasonable probability that the plaintiff will prevail on the merits at trial (CCP §526(a)(1)); and 2) a balancing of the "irreparable harm" that the moving party is likely to sustain if the injunction is denied compared to the harm that the non-moving party is likely to suffer if the court grants a preliminary injunction. (CCP §526(a)(2); 14859 Moorpark Homeowner's Assn. v. VRT Corp. (1998) 63 Cal.App.4th 1396, 1402.) "A preliminary injunction is an interim remedy designed to maintain the status quo pending a decision on the merits." (MaJor v. Miraverde Homeowners Assn. (1992) 7 Cal.App.4th 618, 623.) "[A] cause of action must exist before injunctive relief may be granted." (Id. (citing Shell Oil Co. v. Richter (1942) 52 Cal.App.2d 164, 168).)

The court's ruling on a preliminary injunction is not an adjudication of the merits, is not a trial, and does not require a statement of decision. (Cohen v. Board of Supervisors, (1985) 40 Cal.3d 277, 286.) The judge is not required to state her reasons for granting or denying a preliminary injunction; a cursory statement is sufficient. (City of Los Altos v. Barnes, (1992) 3 Cal.App.4th

1193, 1198.) A proposed order must be presented to the judge for signature, with any required undertaking, within one day after the preliminary injunction is granted, or other time ordered by the judge. (CRC 3.1150(f).)

Analysis

Defendant/Cross-Complainant Jing

Wang moves for a preliminary injunction. Wang seeks an order either (a) directing Cross-Defendant Lingxiao Li to cure the default and resume timely payment of the mortgage, insurance, and homeowners' association assessments for real property located at 2127 Oak Canyon Lane, Chino Hills, California 91709, or (b) releasing a sufficient portion of Li's funds presently restrained under the writ of attachment issued in this action and applies them to those carrying costs — either way drawing on Li's own resources to restore the payments he allegedly made from 2018 through August 2025. Alternatively, Wang requests an order (a) requiring Plaintiffs provide or contribute carrying-cost protection sufficient to prevent foreclosure pending trial; or (b) authorizing Wang, solely for preservation purposes, to cure the default and advance the necessary carrying costs, with any amounts so advanced secured by an equitable lien on the Property, priority and disposition to be determined at trial. Wang argues that these orders are necessary to preserve the status quo of the Property pending trial, which is in immediate danger of being lost to foreclosure. A Notice of Default and Election to Sell having now been recorded against the Property following Li's cessation of the mortgage payments he had made for years.

Wang's request for judicial notice

is GRANTED. Shen's request for judicial notice is GRANTED.

Plaintiff seeks mandatory

injunctions against Li and Plaintiffs. "[T]he general rule is that an injunction is prohibitory if it requires a person to refrain from a particular act and mandatory if it compels performance of an affirmative act that changes the position of the parties." (Davenport v. Blue Cross of California, (1997) 52 Cal.App.4th 435, 446.) Courts are generally more reluctant to issue a mandatory injunction, even if they may be granted in proper cases, and subject to stricter scrutiny on review. (Allen v. Stowell, (1905) 145 Cal. 666, 669; Teachers Ins. & Annuity Assn. v. Furlotti, (1999) 70 Cal.App.4th 1487, 1493.)

Wang does not fully explain the

status quo to justify the sought injunctions. Wang does not explain how Li was making the payments on mortgage, homeowner's insurance, and homeowners' association assessments for the Property. Wang generally declares that Li has done so in the past, but he ceased in August 2025, presumably because this litigation tied up his resources. (Wang Decl., ¶¶ 4-5, 10.) From the record, the Court can infer that Li must have been making payments through 2127 LLC. That LLC, as Trustee of the Canyon Lane Trust, is the borrower of record on the 2021 Chase loan. (Wang Decl. ¶ 3; Cross-Compl. ¶¶ 50–51.) While Li was allegedly the equitable source of the payments, any injunction truly preserving the status quo would require 2127 LLC to continue making the payments. However, Wang does not involve the actual borrower on the loan or owner of the property in this motion to make the payments. Instead, Wang would require third parties to directly pay the loan, insurance and assessments. As an initial matter, Wang needs to establish that Li must continue to make those payments in the same fashion, i.e., through the 2127 LLC and not directly. The Court would not compel Li (or Plaintiffs) to directly pay for the mortgage, insurance or assessments, since neither are borrowers of record on the subject loan or owners of the property.

For similar reasons, the Court also concurs with Plaintiffs that the motion has not joined necessary parties. 2127 LLC would be a necessary party to this injunction, since any of the proposed injunctions would affect its obligations under the mortgage, insurance agreement(s), and HOA CC&Rs. Additionally, JPMC and the HOA would be necessary parties to any of the proposed injunctions since, in effect, Wang seeks to force JPMC to accept payments directly from a third party, either Li, Plaintiffs, or Wang herself, instead of the LLC. Even if the Court compels or "authorizes" any of those third parties to the loan to make payments, there is no guarantee or requirement that JPMC or the HOA has to accept those payments.

Additionally, in terms of the balance of equities, Wang contends that the Property has been her and her children's residence since 2018, and that losing the home would cause irreparable harm to her children. (Wang Decl., ¶¶ 2, 13.) However, the Court has found the opposite, that Wang likely resides at another property in Newport beach. This suggests, at a minimum, Wang has alternative residence(s) or means to secure a residence if the bank forecloses on the Property.

Further, the Court would not impose any obligation on Plaintiffs in consideration of the equities. At best, Plaintiffs are complete strangers to the Property and the loan transactions. At

worst, Li stole money from Plaintiffs to pay for the Property, making them the victims in this situation.

At most, the Court would only consider issuing the injunction authorizing Wang to cure the default. However, this authorization does not appear necessary to preserve the Property. Wang has not explained why she would need the Court's permission to pay the mortgage, insurance or assessments, when she presumably already has the authority to cure the default via her membership interest in 2127 LLC. Wang's evidence in reply only underscores this issue. Wang shows that 2127 LLC is ready, willing and able to tender the reinstatement amount. (Supp. Wang Decl. ¶¶ 3, 8–11 & Exs. A–B.) Thus, Wang already has the legal ability to make the payments without a court order and there is no real risk that the Property will be lost absent an injunction. Under such circumstances, an injunction would not be necessary to preserve the Property. Instead, Wang may be able to recover monetary relief for any payments made through her Cross-Complaint against Li, but entitlement to such relief would not justify an injunction under the circumstances.

Accordingly, the motion is DENIED.